

District- Khulna

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 4200 of 1996

Mohammad Borhanuddin Khan

... defendant petitioner

- versus-

Syed Sahjahan and others

...plaintiff opposite parties

No one appears

... for the defendant petitioner

No one appears

... for the plaintiff opposite parties

Judgment on: 06.03.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party No. 1 to show cause as to why the impugned order No. 34, dated 06.10.1996, so far as it relates to amendment of the written objection is concerned, passed by the Assistant Judge, Botiaghata, Khulna, in Title Suit No. 48 of 1994 should not be set aside and/or passed such other or further order(s) as to this court may seem fit and proper.

At the time of issuance of the Rule further proceeding of the Title Suit No. 48 of 1994, pending before the learned Assistant Judge, Botiaghata, Khulna was stayed.

The short facts for the purpose of disposal of the Rule are that the opposite party No. 1 as plaintiff filed Title Suit No. 48 of 1994 in the Court of Assistant Judge, Botiaghata, Khulna for declaration of title against the present petitioner and opposite parties No. 2-12. The present petitioner as defendant was contesting the suit by filing written statement. The suit was being heard analogously with the Suit No. 47 of 1994 in the same court. During examination in chief of the P.W. 1 the present petitioner filed two separate applications namely under Order VI rule 17 read with section 151 of the Code of Civil Procedure for amendment of the written statement and under Order XXVI rule 1 of the Code of Civil Procedure for holding local investigation by an Advocate commissioner. Both the application were heard by the learned Assistant Judge who rejected the same by the impugned order No. 34 dated 06.10.1996 holding that the applications were submitted at the belated stage.

Being aggrieved by and dissatisfied with the above judgment and order passed by the learned Assistant Judge, the defendant No. 1 moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule so far as it relates to rejection the applications for amendment of written statement and the order of stay.

None appears either for the parties.

I have examined the record along with the impugned order and other connected papers on record.

On perusal of the application for amendment of the written statement it appears that during drafting of the original written statement why all the facts and circumstances could not be inserted has been explained. Before insertion of the proviso in rule 17 under Order VI by the amendment of the Code of Civil Procedure (Amendment Act), 2012 at any stage of the proceedings an amendment of pleadings could be allowed without forming any opinion by the judge concerned even after commencement of the trial. Since the ground was stated in the application the learned trial judge ought to have allowed the application for amendment of the written statement.

In view of the above discussions and facts and circumstances of the case, I am of the view that the Rule has substance, and accordingly the same deserves to be made absolute.

In the result, the Rule is made absolute without any order as to cost.

The impugned order No. 34 dated 06.10.1996, so far as it relates to the amendment of the written statement, is set aside and the prayer for amendment of the written statement is allowed.

The learned Assistant Judge is directed to dispose of the suit expeditiously.

Let a copy of this judgment be transmitted at once.